

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JACOB LUBIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER STEVEN TEJEDA, Shield No. 11253, SERGEANT EDWIN DURAN, Shield No. 1656, DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, POLICE OFFICER RUPAK DEY, Shield No. 19319, POLICE OFFICER BRIAN WILLIAMS, Shield No. 9001, DETECTIVE BESNIK BOJKOVIC, Shield No. 2428, DETECTIVE NICHOLAS SCHIRALDI, Shield No. 3272, SERGEANT DAVID GRIECO, Shield No. 3830, and POLICE OFFICERS JOHN DOES #s 1-10 (names and number of whom are unknown at present),

Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 24, 2022

Yours, etc.



JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER STEVEN TEJEDA, Shield No. 11253, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
SERGEANT EDWIN DURAN, Shield No. 1656, 103rd Precinct, 168-02 91st Ave, Queens, NY 11432
DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, Criminal Intelligence Section
POLICE OFFICER RUPAK DEY, Shield No. 19319, Highway Patrol Unit 2, 2900 Flatbush Ave, Brooklyn, NY 11234
POLICE OFFICER BRIAN WILLIAMS, Shield No. 9001, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
DETECTIVE BESNIK BOJKOVIC, Shield No. 2428, Criminal Intelligence Section
DETECTIVE NICHOLAS SCHIRALDI, Shield No. 3272, Criminal Intelligence Section
SERGEANT DAVID GRIECO, Shield No. 3830, Crime Control Strategies

SUPREME COURT OF THE STATE OF NEW YORK
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JACOB LUBIN,

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THE CITY OF NEW YORK, POLICE OFFICER
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EDWIN DURAN, Shield No. 1656, DETECTIVE
FLAGUMY VALCOURT, Shield No. 3636, POLICE
OFFICER RUPAK DEY, Shield No. 19319, POLICE
OFFICER BRIAN WILLIAMS, Shield No. 9001,
DETECTIVE BESNIK BOJKOVIC, Shield No. 2428,
DETECTIVE NICHOLAS SCHIRALDI, Shield No. 3272,
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POLICE OFFICERS JOHN DOES #s 1-10 (names and
number of whom are unknown at present),

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JACOB LUBIN, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that he was, unlawfully stopped, questioned, frisked, searched, and falsely arrested, for allegedly Trespassing into a courtyard of a privately owned apartment building complex, located in the vicinity of 1402 Brooklyn Ave, Brooklyn, New York 11210. Plaintiff alleges that on August 30, 2019, at approximately 9:00 PM he was lawfully present in the courtyard of the privately owned apartment building complex located in the vicinity of 1402 Brooklyn Ave, which is part of the Flatbush Gardens apartment complex when defendants unlawfully stopped, questioned, frisked, searched and falsely arrested/ imprisoned plaintiff. Defendants unlawfully transported plaintiff to the 67th Precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours. Plaintiff was eventually transported to Kings County Central Booking whereat the unlawful detention

continued for many additional hours. On August 31, 2019 plaintiff was released from custody at Kings County Central Booking without being charged with a crime, after the Kings County District Attorney's Office declined to prosecute plaintiff because the defendants conducted "an unlawful search and seizure" of plaintiff and because there was insufficient evidence to prosecute plaintiff for trespassing at the location where he was arrested. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, and falsely arrested plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff JACOB LUBIN is a resident of the state of New York.

3. Defendant POLICE OFFICER STEVEN TEJEDA, Shield No. 11253, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER STEVEN TEJEDA, Shield No. 11253, is and was at all times relevant herein, assigned to the 67th Precinct.

5. Defendant SERGEANT EDWIN DURAN, Shield No. 1656, is being sued in his individual and official capacity

6. Defendant SERGEANT EDWIN DURAN, Shield No. 1656, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT EDWIN DURAN, Shield No. 1656, was at all times relevant herein, assigned to the 67th Precinct, and is presently assigned to the 103rd Precinct

8. Defendant SERGEANT EDWIN DURAN, Shield No. 1656, is being sued in his individual and official capacity.

9. Defendant DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, was at all times relevant herein, assigned to the 67th Precinct, and is presently assigned to the Criminal Intelligence Section.

11. Defendant DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER RUPAK DEY, Shield No. 19319, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER RUPAK DEY, Shield No. 19319, was at all times relevant herein, assigned to the 67th Precinct, and is presently assigned to the Highway Patrol Unit 2.

14. Defendant POLICE OFFICER RUPAK DEY, Shield No. 19319, is being sued in his individual and official capacity.

15. Defendant POLICE OFFICER BRIAN WILLIAMS, Shield No. 9001, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER BRIAN WILLIAMS, Shield No. 9001, is and was at all times relevant herein, assigned to the 67th Precinct.

17. Defendant POLICE OFFICER BRIAN WILLIAMS, Shield No. 9001, is being sued in his individual and official capacity.

18. Defendant DETECTIVE BESNIK BOJKOVIC, Shield No. 2428, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant DETECTIVE BESNIK BOJKOVIC, Shield No. 2428, was at all times relevant herein, assigned to the 67th Precinct and is presently assigned to the Criminal Intelligence Section.

20. Defendant DETECTIVE BESNIK BOJKOVIC, Shield No. 2428, is being sued in his individual and official capacity

21. Defendant DETECTIVE NICHOLAS SCHIRALDI, Shield No. 3272, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant DETECTIVE NICHOLAS SCHIRALDI, Shield No. 3272, was at all times relevant herein, assigned to the 67th Precinct, and is presently assigned to the Criminal Intelligence Section.

23. Defendant DETECTIVE NICHOLAS SCHIRALDI, Shield No. 3272, is being sued in his individual and official capacity.

24. Defendant SERGEANT DAVID GRIECO, Shield No. 3830, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant SERGEANT DAVID GRIECO, Shield No. 3830, was at all times relevant herein, assigned to the 67th Precinct and is presently assigned to Crime Control Strategies.

26. Defendant SERGEANT DAVID GRIECO, Shield No. 3830, is being sued in his individual and official capacity

27. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

28. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

31. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

33. On August 30, 2019 at approximately 9:00 PM plaintiff was lawfully present in the courtyard in the vicinity of the privately owned apartment building located at 1402 Brooklyn Ave, Brooklyn, New York 11210, which is part of the Flatbush Gardens apartment complex, when defendants unlawfully stopped, questioned, frisked, searched and falsely arrested/ imprisoned plaintiff for allegedly Trespassing onto the property of the apartment building complex where plaintiff was lawfully present.

34. By way of background, on August 30, 2019, plaintiff spent most of the afternoon playing basketball with friends at Nostrand Park, Brooklyn, New York.

35. Everyone playing basketball with plaintiff seemed to enjoy themselves and there was no criminal activity whatsoever on the basketball courts involving plaintiff or any of the individuals playing basketball.

36. Just before dusk, defendant Sergeant David Grieco and the team of officers he supervised arrived at the basketball courts in Nostrand Park and proceeded to order everyone playing basketball, including plaintiff to leave the park for the night.

37. Plaintiff complied with defendant Sergeant Grieco's order to leave the park, and he proceeded to walk with his friends from the Nostrand Park to the courtyard outside of 1402 Brooklyn Avenue, which was part of the privately owned building complex where plaintiff's friends lived.

38. Specifically, the courtyard where plaintiff and his friends were present was located outside one of the buildings that was part of the Flatbush Gardens Apartment Complex.

39. The Flatbush Gardens Apartment complex is a privately owned apartment complex that consists of 59 buildings and spans for approximately 4 blocks.

40. The complex is not gated, and the general public is permitted to walk through the property of the apartment complex without violating the law for trespassing.

41. When there are complaints made by residents of an unruly or suspicious individual on the property of the building complex, the private security company that patrols the complex will ask the individual(s) to disperse and/ or leave the property.

42. Defendant Sergeant Grieco and his team of officers followed plaintiff and his friends from the basketball courts to the courtyard located in the vicinity of 1402 Brooklyn Ave, that courtyard.

43. The defendant police officers admit that at no time relevant herein did they observe plaintiff or any of his friends rolling dice, smoking marijuana, or drinking.

44. When plaintiff and his friends arrived in the vicinity of 1402 Brooklyn Avenue, they stood in the courtyard located outside of the buildings where several of plaintiff's friends lived.

45. Plaintiff and his friends lawfully stood in the courtyard chatting with each other for a few minutes.

46. Defendant Sergeant Grieco and his team of officers observed plaintiff and his friends socializing in the courtyard.

47. Defendants proceeded to harass plaintiff and his friends, even though the officers did not observe any of them violating the law.

48. The defendant officers “approached and cornered” plaintiff and his friends.

49. The defendant officers unlawfully stopped, seized, and searched plaintiff and his friends even though the officers knew plaintiff had not violated the law in any respect.

50. At no time relevant herein did the defendant police officers possess reasonable suspicion or probable cause to believe plaintiff or his friends committed a crime or violate the law.

51. The defendant police officers did not recover any illegal drugs, weapons or contraband pursuant to the unlawful search of plaintiff.

52. At no time relevant herein did the defendant police officers ask plaintiff and/or his friends to leave the premises or to disperse.

53. Instead, the defendant police officers proceeded to falsely arrest plaintiff and his friends for allegedly trespassing into the courtyard.

54. The defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without probable cause or any legal justification.

55. Defendants unlawfully transported plaintiff against his will to the 67th Precinct, whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

56. Plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued until he was released from custody at Central Booking on August 31, 2019, without appearing before a judge or being charged with a crime.

57. The Kings County District Attorney’s Office declined to prosecute plaintiff after it concluded that the defendant police officers conducted an “unlawful search and seizure” of plaintiff and also determined that there was “insufficient evidence to prosecute” plaintiff.

58. Specifically, the DA’s Office determined that “there was insufficient evidence to prosecute [plaintiff] for trespassing in the courtyard.”

59. According to the DA’s Office, “8 of the individuals arrested with plaintiff, lived in the building complex and plaintiff had a legal right to be present in the courtyard with his friends.”

60. Further, DA’s Office confirmed that “the police did not ask the group to disperse or leave the courtyard and the police did not observe any other criminality.”

61. The defendant police officers lacked probable cause to arrest plaintiff and that it was legal for plaintiff to socialize with his friends in the courtyard of the building complex where he lived.

62. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

63. At no time relevant herein did defendants ask plaintiff to voluntarily cooperate with them, as required by the New York City Police Department Patrol Guide Procedure Number 212-59.

64. At no time relevant herein after defendants approached plaintiff did defendants advise plaintiff that he was free to leave, as required by the New York City Police Department Patrol Guide Procedure Number 212-59.

65. Plaintiff was not free to leave when the officers approached him on August 30, 2019, at approximately 9:00 PM in the courtyard outside of 1402 Brooklyn Avenue...

66. Defendants did not possess reasonable suspicion or probable cause to reasonably believe plaintiff was trespassing in the building courtyard or that he committed any other crime.

67. At no time relevant herein did defendants instruct plaintiff that he must leave the building courtyard or be subject to arrest for trespass, as required by the New York City Police Department Patrol Guide Procedure Number 212-59

68. Defendants unlawfully searched plaintiff without probable cause.

69. Defendants did not recover any illegal drugs, weapons, or contraband on plaintiff or from plaintiff's possession, custody, or control pursuant to the unlawful frisk and search of plaintiff's person.

70. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

71. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

72. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

73. In 2013 a Federal District Court Judge in the Southern District of New York found that the NYPD had an unconstitutional policy and practice of stopping, seizing and arresting individuals for allegedly trespassing into apartment buildings when the officers did not

have a factual basis to believe the individuals they were stopping, and arresting were engaged in criminal activity. See Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013).

74. The Court held that an individual's mere presence in a public space of an apartment building does not give police officers a legal basis to stop, question, frisk, and /or search the individual because there is nothing about an individual's mere presence in a public space of an apartment building that suggests an individual is committing a crime or violating the law any basis to believe the person is trespassing into the building or committing any other crime. Id.

75. The Court ordered the NYPD and its police officers to immediately stop engaging in unlawful stops, questionings and frisks and falsely arresting individuals for allegedly trespassing into an apartment building based solely upon the fact that the individual is present in a public space located inside the apartment building, without an objective factual basis to establish reasonable suspicion or probable cause that a crime is afoot. Id.

76. The NYPD amended its written policies and training materials regarding when an NYPD officer can legally stop and seize individuals that police officers encounter while on patrol inside of apartment buildings so that the NYPD's written policies and practices were compliant with the Court's ruling in Ligon and the Constitution of the United States.

77. Although the NYPD amended its written policies and practices regarding stops, question and frisk, and arrests for alleged criminal trespass made by its officers, the NYPD is deliberately indifferent to the fact that its police officers continue to follow the NYPD's pre-2013 written policies and practices regarding this issue and does not take any action with its police officers to stop the unconstitutional conduct when police officers, such as defendants in this lawsuit, unlawfully stop, question, frisk, and arrest members of the public, such as plaintiff in this lawsuit, for allegedly trespassing into an apartment building, even when the officers' stated basis for making the stop and arrest was that the individual was present in a public space of a building, such as the allegations made by the defendants in this lawsuit

78. Upon information and belief, the NYPD has taken no action whatsoever to discipline or retrain the defendants in this lawsuit after they violated plaintiff's rights by stopping and arresting plaintiff because he was present in a public hallway of a private apartment building chatting with other individuals even though such behavior by plaintiff is not a crime and does not meet the legal threshold necessary for a police officer to stop, seize or arrest an individual for criminal trespass.

79. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit

to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

80. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public for allegedly committing the crime of Trespass because the individuals were present in a public space area of an apartment building.

81. In addition to violating plaintiff's Constitutional rights, the defendants blatantly violated the Court's standing Order in Ligon as well, and defendants stopped, questioned, frisked, searched, and falsely arrested/imprisoned plaintiff in total disregard of the Federal Judge's order for the NYPD and its police officers to immediately stop engaging in such unlawful and unconstitutional conduct.

82. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public for trespass when they are lawfully present in the public space of a privately owned apartment building and there is no factual basis to suspect the individual has committed a crime.

83. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

84. In Ligon, United States District Court Judge Shira A. Scheindlin held that, "[b]y 2011 city policymakers were on actual notice of a practice of unconstitutional trespass stops by city employees outside [privately owned apartment] buildings," and that, "[a]s early as 1999, the NYPD Legal Bureau was aware that it was unlawful to stop someone [in a privately owned apartment building] simply for entering and exiting [the] building." Ligon at 143.

85. The Court in Ligon further held that "despite being on actual notice that their policy of 'stop and question first, develop reasonable suspicion later' was unconstitutional, the NYPD failed to properly train officers, leading to more than 2,000 unlawful stops outside of TAP buildings in 2011 alone." Id.

86. Although defendant City and the NYPD have since changed their written policies to comply with the Court's rulings in Ligon, defendant City of New York and the NYPD continue to be deliberately indifferent to the fact that there is an unwritten policy and practice followed by NYPD police officers throughout the City wherein police officers continue to engage in an unlawful practice of stopping members of the public who are present in the

public shared space of a privately owned apartment even if the officers don't possess any evidence that indicates the individual is engaged in criminal activity.

87. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

88. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

89. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, and falsely imprisoned, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

91. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

96. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

98. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

104. Defendants lacked probable cause to search plaintiff.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

108. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

110. Defendants failed to intervene to prevent the unlawful conduct described herein.

111. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

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SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, Searching, and Arresting Individuals Trespassing into Apartment Buildings in violation of the Fourth and Fourteenth Amendments to the United States Constitution

113. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

115. A Federal Court has already found that for many years, including the time period of 1999 through 2011, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013).

116. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these stops and searches, and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

117. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

118. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train,

and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

119. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

120. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

121. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jacob Lubin demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 24, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
August 24, 2022

David Hazan

DAVID M. HAZAN